

GS FOUNDATION BATCH FOR CSE (2023-24)

ETHICS IN GOVERNANCE - HANDOUT 14

Probity in Governance -3

Probity in Governance

Citizen Charter

- Voluntary document of commitment to ensure quality of service delivery.
- Principles – Quality, Choice, Value, Transparency, Accountability etc.
- Components – Vision & Mission statement, Choice, Standards, Time frame, Grievance Redressal Mechanism.

Evaluation of Citizen Charter [DAPRG]

- No consultative process
- Lack of awareness about the philosophy, features & goals of the charter [service providers]
- Lack of publicity & non-compliance
- Lack of finances for training & logistical support
- lack of review & updation
- No Legal Accountability
- Most of them are unrealistic & not formulated in local language.

Probity in Governance

Work Culture

- The collection of attitudes, beliefs & behaviors that make up the regular atmosphere in a work environment.
- Good work environment – features
 - ✓ Objectivity in assessment
 - ✓ Transparent
 - ✓ Mutual Respect
 - ✓ Increased Productivity
 - ✓ Reward & Punishment — Proportionate.
 - ✓ Participation & Discussion
 - ✓ Voluntary compliance
 - ✓ High Ethical & Moral standards
- Consequences
 - ✓ Productivity
 - ✓ Loyalty / Retention Rate
 - ✓ Moral & Ethical standards

Work culture.

Govt. Organisation

① lack of opportunity
② Top down approach

Practice Case Study

You are a no-nonsense, honest officer. You have been transferred to a remote district to head a department that is notorious for its inefficiency and callousness.

You find that the main cause of the poor state of affairs is the indiscipline of a section of employees. They do not work themselves and also disrupt the workings of others.

You first warned the troublemakers to mend their ways or else face disciplinary action. When the warning had little effect, you issued a show cause notice to the ringleaders.

As a retaliatory measure, these troublemakers instigated a woman employee amongst them to file a complaint of sexual harassment against you with the Women's Commission.

The Commission promptly seeks your explanation. The matter is also publicized in the media to embarrass you further.

Practice Case Study

Some of the options to handle this situation could be as follows:

(i) Give your explanation to the Commission and go soft on the disciplinary action.

(ii) Ignore the commission and proceed firmly with the disciplinary action.

(iii) Brief your higher-ups, seek directions from them and act accordingly.

Suggest any other possible option(s). Evaluate all of them and suggest the best course of action, giving your reasons for it.

Probity in Governance

Utilisation of Public Funds

- Public funds is a term that refers to funds or resources that are owned or held by the Govt. [Public financial resources that the state manages]
- Sources – Tax & Non-tax
- Funds – Art. 266 & Art. 267
- Role of parliament – Approval of Budget & Post Budget scrutiny [Legality & Accountability]
- Issues – Underutilization, Misutilization [Diversions & Irregularities]
 - ✓ Ministry of labour & employment [PM Garib Kalyan Yojana] *underutilization*
 - ✓ Dwarka Expressway Project – CAG reports 14 times more expenditure
 - ✓ Diversion funds allocated to National Social Assistance scheme.

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Reasons for Underutilization & Misutilization of Funds

- Politician-Bureaucratic Nexus
- Loopholes in budgetary allocations
- Corruption
- Delays in Sanctions
- Poor internal audit & CAG audit being post-mortem in Nature

1000 → 600
400 (Divert)

Underutilization.

after damage done

Implications

- Poor Quality of service delivery
- Affect developmental activities
- More tax burden
- Wastage of national resources
- Loss of trust in the government

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Practice Question

1. Effective utilization of public funds is crucial to meet development goals. Critically examine the reasons for under-utilization and mis-utilization of public funds and their implications.

Practice Case Study

Rakesh was working as Joint Commissioner in Transport Department of a city. As a Part of his Job profile, among others, he was entrusted with the task of overseeing the control and functioning of City Transport Department. A case of strike by the drivers' union of City Transport Department over the issue of Compensation to a driver who died on duty while driving the bus came up before him for decision in the matter.

He gathered that the driver (deceased) was plying Bus No. 528 which Passed through busy and congested roads of the city. It so happened that near an intersection on the way, there was an accident involving the bus and a car driver by a middle-aged man. It was found that there was altercation between the driver and the car driver.

Heated arguments between them led to fight and the driver gave him a blow. Lot of passersby had gathered and tried to intervene but without success. Eventually, both of them were badly injured and profusely bleeding and were taken to the nearby hospital. The driver succumbed to the injuries and could not be saved. The middle-aged driver's condition was also critical but after a day, he recovered and was discharged.

Police had immediately come at the spot of accident and FIR was registered. Police investigation revealed that the quarrel in question was started by the bus driver, and he had resorted to physical violence.

Practice Case Study

There was exchange of blows between them. The City Transport Department management is considering of not giving any extra compensation to the driver's (deceased) family. The family is very aggrieved, depressed and agitated against the discriminatory and non-sympathetic approach of the City Transport Department management.

The bus driver (deceased) was 52 years of age, was survived by his wife and two school-college going daughters. He was the sole earner of the family. The City Transport Department workers' union took up this case and when found no favorable response from the management, decided to go on strike. The union's demand was two-fold.

First was full extra compensation as given to other drivers who died on duty and secondly employment to one family member. The strike has continued for 10 days, and the deadlock remains.

- (a) What are the options available to Rakesh to meet the above situation?
- (b) Critically examine each of the options identified by Rakesh.
- (c) What are the ethical dilemmas being faced by Rakesh?
- (d) What course of action would Rakesh adopt to diffuse the above situation

Practice Case Study

(a) What are the options available to Rakesh to meet the above situation?

(b) Critically examine each of the options identified by Rakesh.

1. Decide not to give extra compensation as the conduct of the deceased driver was not appropriate & to set a precedent for the future.
2. Decide in favour of extra compensation & job for the wife of the deceased driver taking into consideration their future.
3. Accept to the demand of the Union on certain terms and conditions that the management reserve the right to reduce the compensation in future cases for inappropriate behaviour or for violating the conduct rules at work.
4. Act against the Union members as per the existing rules & Regulations

Practice Case Study

(c) What are the ethical dilemmas being faced by Rakesh?

1. Organizational Interest vs Interest of family members of the deceased employee
2. Public Interest Vs ensuring good conduct & discipline

(d) What course of action would Rakesh adopt to diffuse the above situation?

1. Call upon the Representatives of the Union & place Infront of them the available facts.
2. If required conduct a quick & impartial enquiry to double check the facts.
3. Accept the demand of the union on condition that management may reserve the right to reduce compensation in future cases for violation of the conduct rules.
4. Identify the lapses on the part of the management to see if there are any lapses like need for regular training for soft skills, sensitization on issues like road rages etc.
5. Revise as required & Circulate the Conduct rules to all employees and members of the Union.
6. Co-ordinate with Traffic department to reduce congestion on the busy roads & explore the possibility of installation of traffic signals at accident prone intersections.